

but all expenses entailed by this Act or an order made thereunder on the guardians of the poor law union named in that order shall be repaid to them by the guardians of the poor law union consisting of or comprising the parish where the said person is actually settled.

Application of
Act to reformatory and
industrial
schools.

2. This Act shall apply to persons detained in industrial and reformatory schools, subject to the following modifications:—

- (a) For references to prisons and governors thereof there shall be substituted references to reformatory and industrial schools and superintendents thereof:
- (b) For the reference to members of the visiting committee or board of visitors there shall be substituted a reference to managers:
- (c) References to offences and the time and place where offences were committed shall include references to the circumstances in consequence of which the order of detention was made and the time and place where such circumstances occurred.

Application of
Act to inebriate reformatories.

3. This Act shall apply to persons detained in inebriate reformatories subject, in the case of certified inebriate reformatories, to the following modifications:—

- (a) For references to prisons and governors thereof there shall be substituted references to inebriate reformatories and superintendents thereof:
- (b) For references to members of the visiting committee or board of visitors there shall be substituted references to managers.

Short title and
extent.

4.—(1) This Act may be cited as the Released Persons (Poor Law Relief) Act, 1907.

(2) This Act shall extend only to England and Wales, and where a person has not a place of settlement or residence in England or Wales his place of settlement or residence shall be deemed for the purposes of this Act to be unascertainable.

CHAPTER 15.

An Act to enable Provisional Orders to be made for regulating Salmon and Freshwater Fisheries.

[21st August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power of
Board of Agri-
culture and
Fisheries to
make orders.

1. With a view to the improvement and development of the salmon fisheries or freshwater fisheries, or either of them, within any area, the Board of Agriculture and Fisheries may, upon such application as is herein-after mentioned, make a

provisional order for the regulation of any such fisheries within the area defined by the order.

- 2.—(1) A provisional order under this Act may provide for— Contents of the
order.
- (a) defining the area within which the order is to apply ;
 - (b) the constitution and incorporation of a board of conservators ;
 - (c) applying to a board of conservators so constituted, and an area so defined, either without modification, or subject to such modifications as may be contained in the order, all or any of the provisions of the Salmon and Freshwater Fisheries Acts with respect to boards of conservators and fishery districts constituted under those Acts ;
 - (d) the imposition, collection, and recovery of contributions to be assessed on private fisheries regulated by the order or on the owners or occupiers thereof ;
 - (e) enabling the conservators to purchase or take on lease any part of the foreshore specified in the order together with any easement over any adjoining land necessary for securing access to the foreshore so acquired, and by themselves or their lessees to erect on the foreshore so acquired and work fixed engines for salmon ;

Provided that any such order—

- (i) shall not authorise a fixed engine for salmon to be worked for a period exceeding five years unless the authority is from time to time extended by licence of the Board for such term as may be specified in the licence and not exceeding at any one time five years, and the Board shall not grant any such licence until they have inquired into the effect of the working of the engine on the salmon fisheries within the area ; and
 - (ii) shall provide that all rents and profits of the fixed engines for salmon authorised by the order to be worked by the conservators shall be appropriated for the purpose of securing the restriction or abolition of the use in the area of nets and other obstructions to the passage of salmon :
- (f) modifying in relation to the fisheries within the area any of the provisions of the Salmon and Freshwater Fisheries Acts which relate to the regulation of fisheries, or of any local Act relating to any fishery within the area ;
 - (g) abolishing any board of conservators established under the Salmon and Freshwater Fisheries Acts within the area, and transferring their property and liabilities to the board of conservators constituted by the

order, and making such adjustments between the two bodies as may appear to the Board to be necessary or expedient ;

(h) requiring returns to be made by persons taking fish within the area ;

(i) the payment out of any funds in the hands of the board of conservators constituted by the order of the costs of the applicants in obtaining the order and its confirmation by Parliament ;

(j) the general regulation of the fisheries within the area, and may contain any incidental, consequential, or supplemental provisions, including provisions for payment of compensation to persons injuriously affected by the order, which may appear to be necessary or proper for the purposes of the order.

(2) For the purpose of the acquisition of any part of the foreshore or any easement necessary for giving access thereto authorised to be taken compulsorily under any such provisional order, the provisions of the Lands Clauses Acts which relate to the purchase and taking of lands otherwise than by agreement, and to the entry upon lands by the promoters of the undertaking, are, subject to the modifications set out in the schedule to this Act, incorporated with this Act.

(3) The Board of Agriculture and Fisheries shall make rules providing for proper notice being given of an application for the inclusion in a provisional order of a power to acquire compulsorily any part of the foreshore or any easement over adjoining land to owners, lessees, and occupiers of the foreshore or land affected, and also for public notice being given of the application by advertisement.

(4) A provisional order under this Act shall not apply to any waters in which the business of artificially propagating or rearing salmon or trout is carried on under a licence granted by the Board of Agriculture and Fisheries, and any such licence may be granted by the Board, subject to such conditions (if any) as they think fit, and may be revoked if the Board are of opinion that any condition has not been observed.

Application for
the order.

3. A provisional order under this Act shall not be made except on the application of a board of conservators constituted under the Salmon and Freshwater Fisheries Acts, or of a county council, or of persons who in the opinion of the Board of Agriculture and Fisheries are the owners of one-fourth at least in value of the private fisheries proposed to be regulated or constitute a majority of the persons holding licences to fish in public waters within the area of the proposed order, and every such application shall be advertised by the applicants in such manner as the Board of Agriculture and Fisheries direct.

Procedure for
making the
order.

4.—(1) The Board of Agriculture and Fisheries, if they consider that a *prima facie* case is made out by the applicants for the making of a provisional order under this Act, shall

hold a local inquiry (of which due notice shall be given) by an inspector or other officer of the Board, who shall report the result of his inquiry to the Board, and they, if satisfied of the propriety of making an order, shall prepare a draft, and shall once in each of two successive weeks notify the making of the draft order in some newspaper in general circulation within the area to which the draft relates, and the notification shall specify the place where copies of the draft can be inspected and obtained, and the time within which and the manner in which notices of objection to the draft are to be sent to the Board.

(2) The Board may, if they think it expedient, and shall, if any county council having authority within the area of the proposed order object, hold a local inquiry by an inspector or other officer of the Board with respect to any objections made to the draft order, and shall, after considering all such objections and the report of the officer who held the inquiry (if any) thereon, settle the terms of the draft order.

5.—(1) The Board of Agriculture and Fisheries may submit to Parliament for confirmation any provisional order made by them in pursuance of this Act, and any such order shall be of no force whatever unless and until it is confirmed by Parliament. Confirmation
by Parliament.

(2) The Board may revoke either wholly or partially any such order before the order is confirmed by Parliament, but such revocation shall not be made whilst the Bill confirming the order is pending in either House of Parliament.

(3) If while the Bill confirming any such order is pending in either House of Parliament a petition is presented against any order comprised therein, the Bill, so far as it relates to such order, shall be referred to a Select Committee, and the petitioner shall be allowed to appear and oppose as in the case of private Bills.

(4) Any such order may be repealed, altered, or amended by a further provisional order made by the Board in like manner as the original order, and confirmed by Parliament.

6. Any expenses incurred by any board of conservators or county council under this Act in respect of any provisional order or confirming Bill made thereunder, or in respect of any application for any such order, shall, whether or not the application for the order was made by the board or the council, be defrayed— Expenses.

(a) in the case of a board of conservators, as expenses incurred by them under the Salmon and Freshwater Fisheries Acts; and

(b) in the case of a county council, out of the county fund.

7. Where any portion of the foreshore proposed to be comprised in a provisional order under this Act, or any fishery proposed to be affected by any such order, or any land over which it is proposed to acquire an easement under any such Consents in
case of Crown
and Duch
foreshore and
land.

order, belongs to His Majesty in right of the Crown, or forms part of the possessions of the Duchy of Lancaster or the Duchy of Cornwall, the Board of Agriculture and Fisheries shall not make the Order:—

- (a) In the case of any foreshore under the management of the Commissioners of Woods, or of any fishery or land belonging to His Majesty in right of the Crown, without the consent of the Commissioners of Woods, or one of them:
- (b) In the case of any foreshore under the management of the Board of Trade, without the consent of the Board of Trade:
- (c) In the case of any foreshore or fishery or land forming part of the possessions of the Duchy of Lancaster, without the consent of the Chancellor of the Duchy:
- (d) In the case of any foreshore or fishery or land forming part of the possessions of the Duchy of Cornwall, without the consent of the Duke of Cornwall, or other the persons for the time being empowered to dispose for any purpose of the lands of the Duchy.

Short title,
extent, and
construction.

8.—(1) This Act may be cited as the Salmon and Freshwater Fisheries Act, 1907, and may be cited with the Salmon and Freshwater Fisheries Acts, 1861 to 1892.

25 & 26 Vict.
c. 97.

(2) This Act shall not apply to Scotland (except the River Esk, in Dumfriesshire, and its tributaries) or to Ireland, or to the River Tweed, as defined by byelaw under the Salmon Fisheries (Scotland) Act, 1862, or to its tributaries.

59 & 60 Vict.
c. 18.

(3) In this Act the expression "Salmon and Freshwater Fisheries Acts" means the Salmon and Freshwater Fisheries Acts, 1861 to 1892, and the Fisheries (Norfolk and Suffolk) Act, 1896, and other expressions have the same meaning as in those Acts.

Section 2.

SCHEDULE.

MODIFICATIONS OF THE LANDS CLAUSES ACTS.

The following modifications shall have effect in the construction of the provisions of the Lands Clauses Acts incorporated by this Act for the purposes thereof:—

- (a) The expression "special Act" means this Act inclusive of any provisional order authorising the compulsory acquisition of any part of the foreshore, except that the period of three years mentioned in section one hundred and twenty-three of the Lands Clauses Consolidation Act, 1845, shall be calculated from the passing of the Act confirming the provisional order;
- (b) The expression "the promoters" means the board of conservators constituted by the order; and
- (c) The expression "land" includes easements in or relating to land,